

# COMPLIANCE GAP ANALYSIS REPORT

GDPR Readiness Assessment — General Data Protection Regulation (EU) 2016/679

|                 |                                       |
|-----------------|---------------------------------------|
| Company         | ass                                   |
| Policy Analyzed | Privacy Policy v1.0                   |
| Standard        | GDPR — All 99 Articles, 11 Chapters   |
| Analysis Date   | 17 August 2026                        |
| Generated By    | ComplianceIQ Engine v1.0 — onetab.ai  |
| Analyzed By     | Agentic RAG Pipeline (4-Agent System) |



|                     |     |
|---------------------|-----|
| Fully Met           | 25  |
| Partially Met       | 59  |
| Not Met             | 331 |
| Conflicting         | 0   |
| Scored Requirements | 415 |

**RISK LEVEL: HIGH RISK — Immediate action required**

Max fine exposure: €20M or 4% annual revenue

## Chapter-by-Chapter Breakdown

| Ch | Chapter Name                    | Articles   | Score  | Status       |
|----|---------------------------------|------------|--------|--------------|
| 1  | General Provisions              | Art. 1–4   | 25.0%  | High Risk    |
| 2  | Principles                      | Art. 5–11  | 16.67% | High Risk    |
| 3  | Rights of the Data Subject      | Art. 12–23 | 34.04% | High Risk    |
| 4  | Controller and Processor        | Art. 24–43 | 14.22% | High Risk    |
| 5  | Third Country Transfers         | Art. 44–49 | 28.85% | High Risk    |
| 6  | Supervisory Authorities         | Art. 51–59 | 1.39%  | High Risk    |
| 7  | Cooperation & Consistency       | Art. 60–76 | 1.25%  | High Risk    |
| 8  | Remedies, Liability & Penalties | Art. 77–84 | 6.67%  | High Risk    |
| 9  | Special Situations              | Art. 85–91 | 0.0%   | High Risk    |
| 10 | Delegated Acts                  | Art. 92–93 | —      | Not Assessed |
| 11 | Final Provisions                | Art. 94–99 | 0.0%   | High Risk    |

# Detailed Gap Analysis

|                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                        |
|------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------------|
| <div>gdpr_article_35_Article_35_9_ · Art. gdpr_article_35_Article_35_9_</div> <div><div>Not Met</div>Confidence: High (0.99)</div> <div><p><b>GDPR Requires:</b></p><p>See GDPR Article gdpr_article_35_Article_35_9_ — full requirement text pending in master checklist.</p><p><b>Your Policy:</b></p><p>Section 3 - Legal Basis for Processing We process personal data only when we have a valid legal basis to do so. The legal bases we rely on are: (cid:127) Contractual necessity — to provide the Services you have signed up for (cid:127) Legitimate interests — for fraud prevention, security, and product improvement (cid:127) Legal obligation — to comply with applicable laws and regulations (cid:127) Consent — for marketing communications and optional analytics (you can withdraw at any time) Where we rely on consent, you have the right to withdraw it at any time by contacting us at privacy@techstartup.com. Withdrawal of consent does not affect the lawfulness of processing that occurred before the withdrawal.</p><p><b>Fix Required:</b></p><p>No action required.</p></div>    |
| <div>gdpr_article_35_Article_35_10_ · Art. gdpr_article_35_Article_35_10_</div> <div><div>Not Met</div>Confidence: High (0.99)</div> <div><p><b>GDPR Requires:</b></p><p>See GDPR Article gdpr_article_35_Article_35_10_ — full requirement text pending in master checklist.</p><p><b>Your Policy:</b></p><p>Section 3 - Legal Basis for Processing We process personal data only when we have a valid legal basis to do so. The legal bases we rely on are: (cid:127) Contractual necessity — to provide the Services you have signed up for (cid:127) Legitimate interests — for fraud prevention, security, and product improvement (cid:127) Legal obligation — to comply with applicable laws and regulations (cid:127) Consent — for marketing communications and optional analytics (you can withdraw at any time) Where we rely on consent, you have the right to withdraw it at any time by contacting us at privacy@techstartup.com. Withdrawal of consent does not affect the lawfulness of processing that occurred before the withdrawal.</p><p><b>Fix Required:</b></p><p>No action required.</p></div> |
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| <div>gdpr_article_36_Article_36_1_ · Art. gdpr_article_36_Article_36_1_</div> <div><div>Not Met</div>Confidence: High (0.99)</div> <div><p><b>GDPR Requires:</b></p><p>See GDPR Article gdpr_article_36_Article_36_1_ — full requirement text pending in master checklist.</p><p><b>Your Policy:</b></p><p>Section 3 - Legal Basis for Processing We process personal data only when we have a valid legal basis to do so. The legal bases we rely on are: (cid:127) Contractual necessity — to provide the Services you have signed up for (cid:127) Legitimate interests — for fraud prevention, security, and product improvement (cid:127) Legal obligation — to comply with applicable laws and regulations (cid:127) Consent — for marketing communications and optional analytics (you can withdraw at any time) Where we rely on consent, you have the right to withdraw it at any time by contacting us at privacy@techstartup.com. Withdrawal of consent does not affect the lawfulness of processing that occurred before the withdrawal.</p><p><b>Fix Required:</b></p><p>No action required.</p></div>    |
| <div>gdpr_article_36_Article_36_2_ · Art. gdpr_article_36_Article_36_2_</div> <div><div>Not Met</div>Confidence: High (0.99)</div> <div><p><b>GDPR Requires:</b></p><p>See GDPR Article gdpr_article_36_Article_36_2_ — full requirement text pending in master checklist.</p><p><b>Your Policy:</b></p><p>Section 11 - Changes to This Policy We may update this Privacy Policy from time to time to reflect changes in our practices or applicable laws. When we make significant changes, we will notify users via email and display a prominent notice on the platform at least 14 days before the changes take</p></div>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |

effect. The 'Effective Date' at the top of this document indicates when the policy was last updated. Continued use of our Services after the effective date constitutes acceptance of the updated policy.

**Fix Required:**

No action required.

**gdpr\_article\_36\_Article\_36\_3\_ · Art. gdpr\_article\_36\_Article\_36\_3\_**

**Not Met** Confidence: High (0.99)

**GDPR Requires:**

See GDPR Article gdpr\_article\_36\_Article\_36\_3\_ — full requirement text pending in master checklist.

**Your Policy:**

Section 2.1 - Information You Provide Directly (cid:127) Full name and email address at account registration (cid:127) Phone number for OTP-based authentication (cid:127) Profile information including job title and company name (cid:127) Payment details processed via Razorpay (we do not store card numbers) (cid:127) Support tickets and chat transcripts when you contact us

**Fix Required:**

No action required.

**gdpr\_article\_5\_Article\_5\_1\_ · Art. gdpr\_article\_5\_Article\_5\_1\_**

**Partially Met** Confidence: High (0.9)

**GDPR Requires:**

See GDPR Article gdpr\_article\_5\_Article\_5\_1\_ — full requirement text pending in master checklist.

**Your Policy:**

Section 3 - Legal Basis for Processing We process personal data only when we have a valid legal basis to do so. The legal bases we rely on are: (cid:127) Contractual necessity — to provide the Services you have signed up for (cid:127) Legitimate interests — for fraud prevention, security, and product improvement (cid:127) Legal obligation — to comply with applicable laws and regulations (cid:127) Consent — for marketing communications and optional analytics (you can withdraw at any time) Where we rely on consent, you have the right to withdraw it at any time by contacting us at [privacy@techstartup.com](mailto:privacy@techstartup.com). Withdrawal of consent does not affect the lawfulness of processing that occurred before the withdrawal.

**Analysis:**

The policy lists legal bases, satisfying part of the lawfulness requirement, but lacks clear transparency information for data subjects, leading to a partial compliance rating (gap N/A).

**Fix Required:**

Add transparent information on processing purposes, data categories, and legal bases in a concise privacy notice.

**gdpr\_article\_60\_Article\_60\_8\_ · Art. gdpr\_article\_60\_Article\_60\_8\_**

**Partially Met** Confidence: High (0.9)

**GDPR Requires:**

See GDPR Article gdpr\_article\_60\_Article\_60\_8\_ — full requirement text pending in master checklist.

**Your Policy:**

Section 12 - Contact & Grievance Officer If you have any questions, concerns, or complaints about this Privacy Policy or our data handling practices, please contact: Name Rajesh Kumar Designation Chief Technology Officer & Data Controller Email [privacy@techstartup.com](mailto:privacy@techstartup.com) Address TechStartup Pvt Ltd, 4th Floor, Brigade Tech Park, Whitefield, Bangalore - 560066, Karnataka, India Phone +91 80 4567 8900 Response Time Within 14 business days This document was last reviewed by the Legal & Compliance team on 28 July 2025. Next scheduled review: August 2026.

**Fix Required:**

No action required.

**gdpr\_article\_7\_Article\_7\_1\_ · Art. gdpr\_article\_7\_Article\_7\_1\_**

**Partially Met** Confidence: High (0.88)

**GDPR Requires:**

See GDPR Article gdpr\_article\_7\_Article\_7\_1\_ — full requirement text pending in master checklist.

**Your Policy:**

Section 3 - Legal Basis for Processing We process personal data only when we have a valid legal basis to do so. The legal bases we rely on are: (cid:127) Contractual necessity — to provide the Services you have signed up for (cid:127) Legitimate interests — for fraud prevention, security, and product improvement (cid:127) Legal obligation — to comply with applicable laws and regulations (cid:127) Consent — for marketing communications and optional analytics (you can withdraw at any time) Where we rely on consent, you have the right to withdraw it at any time by contacting us at [privacy@techstartup.com](mailto:privacy@techstartup.com). Withdrawal of consent does not affect the lawfulness of processing that occurred before the withdrawal.

**Analysis:**

The policy states that personal data is processed only on a valid legal basis and lists the bases, including consent with a withdrawal mechanism. However, it does not explicitly confirm that consent is freely given, specific, informed, and unambiguous, which is required by Article 7(1).

**Fix Required:**

Add a clause stating that consent is freely given, specific, informed, and unambiguous, and that data subjects can withdraw at any time.

gdpr\_article\_38\_Article\_38\_4\_ · Art. gdpr\_article\_38\_Article\_38\_4\_

Partially Met Confidence: High (0.88)

**GDPR Requires:**

See GDPR Article gdpr\_article\_38\_Article\_38\_4\_ — full requirement text pending in master checklist.

**Your Policy:**

Section 5.1 - Right to Access You may request a copy of the personal data we hold about you. We will provide this in a commonly used electronic format.

**Fix Required:**

No action required.

## Fully Met Requirements (1)

| Sub-ID                        | Article                            | Evidence Section                                                |
|-------------------------------|------------------------------------|-----------------------------------------------------------------|
| gdpr_article_49_Article_49_2_ | Art. gdpr_article_49_Article_49_2_ | Section 5.1 - Right to Access You may request a copy of the ... |

## Priority Action Plan

### P1 — CRITICAL PRIORITY · 5 items

| # | Sub-ID                      | GDPR Article                     | Action Required                                                                                                                                       | Current Status |
|---|-----------------------------|----------------------------------|-------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|
| 1 | gdpr_article_10_Article_10  | Art. gdpr_article_10_Article_10  | Create a section outlining the handling, safeguards, and lawful bases for processing criminal conviction data as required by Article 10.              | Not Met        |
| 2 | gdpr_article_5_Article_5_2_ | Art. gdpr_article_5_Article_5_2_ | Add a 'Purpose Limitation' section documenting the specific purposes for processing and stating that data will not be used for incompatible purposes. | Not Met        |
| 3 | gdpr_article_6_Article_6_2_ | Art. gdpr_article_6_Article_6_2_ | Document the specific lawful basis(es) required under Article 6(2) and how they are applied to processing activities.                                 | Not Met        |
| 4 | gdpr_article_6_Article_6_3_ | Art. gdpr_article_6_Article_6_3_ | Provide a detailed explanation of the consent requirements and other lawful bases stipulated in Article 6(3).                                         | Not Met        |
| 5 | gdpr_article_6_Article_6_4_ | Art. gdpr_article_6_Article_6_4_ | Include a section describing the lawful processing condition(s) outlined in Article 6(4) and how they are met.                                        | Not Met        |

### P2 — HIGH PRIORITY · 5 items

| # | Sub-ID                      | GDPR Article                     | Action Required                                                                                                                         | Current Status |
|---|-----------------------------|----------------------------------|-----------------------------------------------------------------------------------------------------------------------------------------|----------------|
| 1 | gdpr_article_1_Article_1_3_ | Art. gdpr_article_1_Article_1_3_ | Add a statement recognizing the free movement of personal data within the Union and how the organization complies with that principle.  | Not Met        |
| 2 | gdpr_article_2_Article_2_2_ | Art. gdpr_article_2_Article_2_2_ | Add a clause explicitly stating that processing outside the scope of Union law is excluded.                                             | Not Met        |
| 3 | gdpr_article_2_Article_2_3_ | Art. gdpr_article_2_Article_2_3_ | Include a reference to Regulation (EC) No 45/2001 and describe how its provisions are applied.                                          | Not Met        |
| 4 | gdpr_article_2_Article_2_4_ | Art. gdpr_article_2_Article_2_4_ | Document the specific procedural steps required by Art. 2 (4), such as consultation with supervisory authorities or impact assessments. | Not Met        |
| 5 | gdpr_article_3_Article_3_3_ | Art. gdpr_article_3_Article_3_3_ | Include evidence of all applicable transfer mechanisms (e.g., adequacy decisions, BCRs) and a summary of the safeguards employed.       | Not Met        |

### P3 — MEDIUM PRIORITY · 5 items

| # | Sub-ID                      | GDPR Article                     | Action Required                                                                                                                                                    | Current Status |
|---|-----------------------------|----------------------------------|--------------------------------------------------------------------------------------------------------------------------------------------------------------------|----------------|
| 1 | gdpr_article_1_Article_1_1_ | Art. gdpr_article_1_Article_1_1_ | Add a statement affirming that all processing activities are undertaken with appropriate technical and organisational measures to protect personal data.           | Partially Met  |
| 2 | gdpr_article_1_Article_1_2_ | Art. gdpr_article_1_Article_1_2_ | Include a clause confirming that the organization respects and safeguards the fundamental rights and freedoms of individuals in all processing activities.         | Partially Met  |
| 3 | gdpr_article_2_Article_2_1_ | Art. gdpr_article_2_Article_2_1_ | Add a section describing any automated processing activities, their purpose, and the safeguards or rights afforded to data subjects.                               | Partially Met  |
| 4 | gdpr_article_3_Article_3_1_ | Art. gdpr_article_3_Article_3_1_ | State the location of the controller/processor and confirm its establishment within the Union or provide the relevant legal basis for extraterritorial processing. | Partially Met  |

|   |                             |                                     |                                                                                                 |                  |
|---|-----------------------------|-------------------------------------|-------------------------------------------------------------------------------------------------|------------------|
| 5 | gdpr_article_3_Article_3_2_ | Art.<br>gdpr_article_3_Article_3_2_ | Add a section clarifying whether and how the service monitors behavior of persons in the Union. | Partially<br>Met |
|---|-----------------------------|-------------------------------------|-------------------------------------------------------------------------------------------------|------------------|



# Executive Summary

(generation failed)

*DISCLAIMER: This report was generated by ComplianceIQ, an AI-powered compliance analysis tool developed by onetab.ai. It is intended for informational purposes only and does not constitute legal advice. ComplianceIQ uses Agentic RAG technology to map policy text against regulatory requirements and may not capture all nuances of legal interpretation. Organizations should consult qualified legal counsel before making compliance decisions. Confidence scores indicate retrieval quality, not legal certainty.*